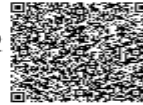


2026:PHHC:086402



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**IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH****CRM-M-32343-2026****Decided on:-01.06.2026**

Jawan Singh

....Petitioner..

vs.

State of Haryana

....Respondent.

CORAM: HON'BLE MR. JUSTICE HARKESH MANUJA

Present: Mr. Sunil Goswami, Advocate for the petitioners.

HARKESH MANUJA J. (Oral)

1. This petition has been filed under Section 482 B.N.S.S for grant of anticipatory bail to the petitioner in case FIR No. 371 Dated 21.11.2023 (Annexure P-1), Under Section 15(c), 18(c), of Narcotic Drugs and Psychotropic Substances Act, 1985, in which sections 29, 27(A) of NDPS Act and section 201 IPC were added later on, registered at Police Station: Kaithal Sadar, District: Kaithal.

2. In the present case, the petitioner has been implicated on the basis of disclosure statement made by main accused, namely Palvinder Singh @ Goldi, from whom **500 grams of opium, 24 bags of doda post (poppy husk) weighing 20 kg each (total 480 kg) and 34 bags of chura post weighing 30 kg each (total 1,020 kg)**, thus, a total of **1,500 kg of poppy husk/chura post** was allegedly recovered from his vehicle.

3. Learned counsel for the petitioner has contended that the petitioner has been nominated as an accused in the present case on the basis of disclosure statement suffered by the main accused Palvinder Singh

@ Goldi, apart from that there is no other incriminating material against the petitioner to connect him in the commission of offence. Moreover, no recovery has been affected from the conscious possession of the present petitioner, hence, the prosecution has no case against the petitioner except the disclosure statement of the co-accused, while in custody, which has no evidentiary value.

4. Notice of motion.

5. At the asking of Court, Mr. Abhinash Jain, Addl.A.G., Haryana appearing on advance notice, accepts notice on behalf of respondent-State. He has vehemently opposed the prayer made in the present petition stating that a significant quantity of contraband i.e 500 grams of opium, 480 kilograms of Doda Post, and 1020 kilograms of poppy husk, which is a commercial in nature, was recovered from the conscious possession of the primary accused, Palvinder Singh @ Goldi. It is further stated that a portion of the narcotics was sold by the petitioner. Additionally, the petitioner, along with co-accused Mehtab Singh Panwar, Manish, and the main accused Palvinder Singh @ Goldi, were found to have been in communication with each other via WhatsApp, suggesting the petitioner's direct involvement in the commission of the offense. Consequently, custodial interrogation of the petitioner is deemed necessary to investigate the source of the contraband and the roles of the other co-accused individuals.

5.1. Learned counsel further submits that the co-accused namely, Mehtab Singh Panwar involved in the present case preferred an application for anticipatory bail which came to be dismissed vide order dated 22.01.2025.

6. Heard learned counsel for the parties and gone through the paper book.
7. Relevant portion from the order dated 22.01.2025 passed by the Co-ordinate Bench is reproduced hereunder:-

“.....This court at this juncture would first delve into the provision of Section 29 of the Narcotic Drugs and Psychotropic Substances (NDPS) Act, wherein it specifically provides that, individuals can be prosecuted if they are found to be buyers or sellers of contraband, especially in the context of conspiracy or abetment related to drug offences. This section specifically addresses the penalties for those who assist or participate in a criminal conspiracy to commit an offence under the NDPS Act. It emphasizes that "whoever abets, or is a party to a criminal conspiracy to commit an offence" is subject to punishment under this law. Buyers or sellers though may not be found in conscious possession can be implicated under this section if there is adequate evidence demonstrating their involvement in a conspiracy related to drug trafficking.

An additional aspect that must be considered by this court is the frequent practice where individuals are implicated under Section 29 of the NDPS Act assert that they were neither present at the scene nor had any contraband in their conscious possession. Taking advantage of this defense, many such accused persons are granted bail. However, this practice needs to be addressed, as individuals targeted under Section 29 are often the primary masterminds behind the drug trafficking networks, orchestrating operations from a distance while using others, typically those found in direct possession of the drugs, as scapegoats. Consequently, the court is of the firm opinion that in such cases, these individuals should be held equally accountable and should not be afforded any leniency. Furthermore, the drug is a social malady, while drug addiction eats into the vitals of the society whereas drug trafficking not only eats into the vitals of the

economy of a country, but illicit money generated by drug trafficking is often used for illicit activities including encouragement of terrorism. The devastating effects of narcotic drugs on any person who comes to its touch are too well known. Normally, such a person ceases to be a normal human being, and is more or less reduced to zombie living animal existences and rushing fast to meet the maker. Divine qualities of an individual who consumes narcotic drugs disappear and they are the first sacrifices one normally makes while falling prey to use of drugs. Anxiety of legislature is to prevent the adverse affect of such drugs and substances on the society.”

8. Adverting to the merits of this case, which was registered based on a secret information indicating that Palvinder Singh @ Goldi, a truck driver, was involved in the illegal trade of intoxicating substances. Consequently, a checkpoint was established, and Palvinder Singh @ Goldi was apprehended along with his truck, bearing registration number RJ-14GN-3419, from which a large quantity of contraband was recovered from his conscious possession. Following his disclosure statement, co-accused Manish was arrested on 14.12.2023, Gurmeet @ Mita was arrested on 06.03.2024 and Naresh Kumar @ Nesha was arrested on 22.03.2024.

9. During further investigation, main accused Palvinder Singh disclosed the name of present petitioner. It was also revealed that Palvinder Singh, Manish and Mehtab Singh Panwar had been in contact with each other through WhatsApp, indicating the petitioner's direct involvement in the commission of the offense. Moreover, the petition for anticipatory bail preferred on behalf of the other co-accused namely, Mehtab Singh Panwar already stands dismissed vide order dated 22.01.2025.

10. Keeping in view the afore-said facts and circumstances and nature of averments, the petitioner does not deserve the concession of anticipatory bail.

11. Hence, the present petition is hereby, dismissed.

01.06.2026
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(HARKESH MANUJA)
JUDGE

Whether speaking/reasoned:	Yes/No
Whether reportable:	Yes/ No